

15. **S-CV-0055189 Dentoni, Diana Jean v. Colfax Mini Storage**

Plaintiff's Motion for Reconsideration

Plaintiff moves for the court to reconsider its order granting defendants' motion to compel arbitration and motion to stay the matter pending completion of arbitration.

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law. . ." (Code Civ. Proc., § 1008, subd. (a).) The motion must include an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*) The motion must also present a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.)

Plaintiff's motion is not supported by declaration or affidavit and therefore fails to satisfy the procedural requirements of a motion for reconsideration. Plaintiff identifies defendants' assertion, contained in defendants' supplemental reply filed February 24, 2026, that a fully executed copy of the rental agreement was emailed to plaintiff on March 19, 2024. Plaintiff was aware of this information at the time of the court's hearing on this matter on March 17, 2026.

Plaintiff states the California Supreme Court's recent decision on February 2, 2026, in *Fuentes v. Empire Nissan, Inc.* (19 Cal. 5th 93, 102) provides new law that further supports reconsideration. Again, this information existed at the time of the hearing. In any case, the holding of *Fuentes* does not require a different result here. *Fuentes* involved an arbitration agreement contained in an employment agreement between the parties. The Court noting numerous facts and circumstances constituting significant oppression in the manner the agreement was presented. The Court also noted the agreement itself was contained in tiny, blurry, almost indecipherable font, and:

Once the text is deciphered, the agreement's language presents a further barrier to understanding: The reader is confronted with a collection of complex sentences replete with legal jargon and statutory references. As the Court of Appeal observed, the arbitration agreement consists of a "mammoth" paragraph consisting of "something like 900 words," with 35 lines squeezed into "about three vertical inches" of text. One sentence, by itself, is 214 words long. The paragraph refers to six different statutes by name, in addition to referring generally to "other applicable state or federal laws or regulations." The paragraph also refers to various government agencies and cites, without explanation, several sections of the California code.

(*Fuentes*, 19 Cal.5th at pgs. 104-05.)

The facts of *Fuentes* are significantly distinguishable from the facts of the instant case. The holding of *Fuentes*, even if it had been decided after the hearing on defendants' motion, does not warrant a different result.

Finally, plaintiff requests relief under CCP § 473(b) because the tentative ruling was adopted without oral argument due to plaintiff's untimely request. Section 473(b) permits a court, in its discretion, to "relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Civ. Code. Proc., § 473(b).) The moving party bears the burden to show a specific ground under the statute and to establish diligence and lack of prejudice. (*Id.*)

Given that plaintiff's motion is not supported by declaration, she fails to demonstrate any mistake, inadvertence, surprise or excusable neglect warranting relief from the court's prior order. Nor does plaintiff establish any likelihood of a different outcome if she had timely requested oral argument.

Plaintiff's motion for reconsideration is denied.

16. S-CV-0055969 Zick, Tanner v. Burachek, Zhanna

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

17. S-CV-0056437 Faulkmer, Steven v. MCVDB

Defendants' Motion for Judgment on the Pleadings

Defendants' request for judicial notice is granted.

Defendants move for judgment on the pleadings. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181